

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Coleson Smith	Team: Squad #13	CCRB Case #: 202303212	☒ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 03/21/2023 12:53 PM, Friday, 04/14/2023 4:00 PM, Thursday, 04/20/2023 12:50 PM	Location of Incident: § 87(2)(b)	18 Mo. SOL 9/21/2024	Precinct: 30
Date/Time CV Reported Fri, 04/14/2023 4:30 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Fri, 04/14/2023 4:30 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. PO Michael Ducasse	02245	972617	030 PCT
3. SGT SA Miguele Amoresano	00076	924884	030 PCT
4. LT Jamie Nardini	00000	941238	PBMN
5. PO Diganta Saha	23914	969346	030 PCT
6. PO Abeda Sultana	02206	970881	030 PCT
7. PO Ernesto Bautista	28399	953671	030 PCT
8. PO Glendy Garzonjimenez	26364	971067	030 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DI Jonathan Korabel	00000	930498	047 PCT
2. PO Rolando Llovera	02803	972741	030 PCT
3. PO Diwan Gurung	21641	963061	030 PCT
4. PO Gregory Purvis	07912	969304	030 PCT
5. PO Rozenbenz Jeanpaul	03118	970620	030 PCT
6. PO Tyler Goldberg	07994	972662	030 PCT
7. PO Anthony Lall	30452	965250	030 PCT
8. PO Luis Gutierrez	26754	968466	030 PCT
9. PO Beth Schadt	16042	946224	030 PCT
10. PO Alvin Joseph	03186	965764	030 PCT
11. PO Anastasia Aquartmorgan	13404	969486	030 PCT

Officer(s)	Allegation	Inv. Div. Recommendation
A . SGT SA Miguele Amoresano	Discourtesy: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano spoke discourteously to § 87(2)(b)	A . Substantiated
B . SGT SA Miguele Amoresano	Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano used physical force against § 87(2)(b)	B . Unfounded

Officer(s)	Allegation	Inv. Div. Recommendation
C . LT Jamie Nardini	Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Lieutenant Jamie Nardini used physical force against § 87(2)(b)	C . Within NYPD Guidelines
D . PO Diganta Saha	Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Diganta Saha used physical force against § 87(2)(b)	D . Within NYPD Guidelines
E . PO Abeda Sultana	Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Abeda Sultana used physical force against § 87(2)(b)	E . Within NYPD Guidelines
F . PO Ernesto Bautista	Abuse: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Ernesto Bautista seized § 87(2)(b) property.	F . Within NYPD Guidelines
G . PO Michael Ducasse	Abuse: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Ducasse seized § 87(2)(b) property.	G . Within NYPD Guidelines
H . SGT SA Miguele Amoresano	Abuse: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano issued an unlawful summons to § 87(2)(b)	H . Substantiated
I . An officer	Abuse: On April 14, 2023, at § 87(2)(b) in Manhattan, an officer seized § 87(2)(b) property.	I . Within NYPD Guidelines
J . PO Glendy Garzonjimenez	Abuse: On April 20, 2023, at § 87(2)(b) in Manhattan, Police Officer Glendy Garzonjimenez seized § 87(2)(b) property.	J . Within NYPD Guidelines

Case Summary

On April 14, 2023, § 87(2)(b) filed this complaint with the CCRB over the phone (**BR 01**).

On March 21, 2023, at approximately 12:53 p.m., in front of § 87(2)(b) in Manhattan, while § 87(2)(b) was washing his motorcycle on the sidewalk, Sergeant Miguele Amoresano of the 30th Precinct referred to § 87(2)(b) as “little bro” (**Allegation A: Discourtesy – Word, Substantiated**) and allegedly pushed § 87(2)(b) (**Allegation B: Force – Physical Force, Unfounded**). Lieutenant Jamie Nardini and Police Officers Diganta Saha and Abeda Sultana of the 30th Precinct pushed § 87(2)(b) (**Allegations C, D, and E: Physical Force, Within NYPD Guidelines**). Police Officers Ernesto Bautista and Michael Ducasse of the 30th Precinct seized § 87(2)(b) motorcycle (**Allegations F and G: Abuse of Authority – Seizure of Property, Within NYPD Guidelines**). Sgt. Amoresano issued § 87(2)(b) an summons for idling his car (**Allegation H: Abuse of Authority – Unlawful Summons, Substantiated**).

On April 14, 2023, at approximately 4:00 p.m., in front of § 87(2)(b) in Manhattan, an officer seized § 87(2)(b) traffic cones (**Allegations I: Abuse of Authority – Seizure of Property, Within NYPD Guidelines**).

On April 20, 2023, at approximately 12:50 p.m., in front of § 87(2)(b) in Manhattan, Police Officer Glendy Garzonjimenez of the 30th Precinct seized § 87(2)(b) traffic cones (**Allegation J: Abuse of Authority – Seizure of Property, Within NYPD Guidelines**).

Body worn camera video was obtained from 11 officers assigned to the 30th Precinct (**BR 02-12, 28**).

Findings and Recommendations

Allegation (A) Discourtesy: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano spoke discourteously to § 87(2)(b)

Allegation (B) Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano used physical force against § 87(2)(b)

Allegation (C) Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Lieutenant Jamie Nardini used physical force against § 87(2)(b)

Allegation (D) Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Diganta Saha used physical force against § 87(2)(b)

Allegation (E) Force: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Abeda Sultana used physical force against § 87(2)(b)

Allegation (F) Abuse of Authority: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Ernesto Bautista seized § 87(2)(b) property.

Allegation (G) Abuse of Authority: On March 21, 2023, at § 87(2)(b) in Manhattan, Police Officer Michael Ducasse seized § 87(2)(b) property.

Allegation (H) Abuse of Authority: On March 21, 2023, at § 87(2)(b) in Manhattan, Sergeant Miguele Amoresano issued an unlawful summons to § 87(2)(b)

§ 87(2)(b) stated (**BR 14**) that was washing his motorcycle in front of his address when Sgt. Amoresano, Lt. Nardini, and Deputy Inspector Jonathan Korabel drove up in a vehicle and approached him. § 87(2)(b) car was parked on the street directly next to him. Sgt. Amoresano asked § 87(2)(b) for his ID. § 87(2)(b) refused to provide it because there was no key in the ignition of his motorcycle. Sgt. Amoresano said, “Oh you’re a tough guy, huh? Listen, son.” The officers then handcuffed § 87(2)(b). Sgt. Amoresano pushed § 87(2)(b) towards Lt. Nardini,

who, along with PO Saha and PO Sultana, pushed him toward a police vehicle and put him in the back. Sgt. Amoresano issued § 87(2)(b) three summonses, one of which was for the engine of his car idling for more than three minutes. He did not recall what the other tickets were for. PO Bautista and PO Ducasse seized § 87(2)(b) motorcycle and brought it to the 30th Precinct stationhouse.

At 01:09 in DI Korabel's BWC (BR 02), § 87(2)(b) motorcycle is captured on the sidewalk without a license plate. The officers approach § 87(2)(b) and ask for his license, and a verbal dispute ensues. At 01:52 in Sgt. Amoresano's BWC (BR 03), Sgt. Amoresano calls § 87(2)(b) "little bro." § 87(2)(b) objects to being called, "little bro," and says that he is a "grown man." Sgt. Amoresano tells § 87(2)(b) that if he does not provide his ID, he is going to "take § 87(2)(b) back." Sgt. Amoresano then states, "Either you give me your ID or I'm taking you to the precinct. Which one is it gonna be?" § 87(2)(b) asks him, "For what?" before turning around and placing his hands on his vehicle. At 02:15, Sgt. Amoresano says, "All right," takes out his handcuffs, and places § 87(2)(b) in handcuffs with the assistance of DI Korabel. At 04:18, Sgt. Amoresano asserts, "I'm in control right now."

At 04:42 in Lt. Nardini's BWC (BR 03), Lt. Nardini leads § 87(2)(b) toward a police vehicle as § 87(2)(b) speaks with his wife, § 87(2)(b). Lt. Nardini states, "we're not doing this. Come on." § 87(2)(b) says, "Hold on" and turns toward his wife, who is telling him to wait. Lt. Nardini places her hands on § 87(2)(b) left arm and left torso, guides him toward the police vehicle, and orders him to walk. At 02:51 in PO Gurung's BWC (BR 09), PO Sultana, PO Saha, and Lt. Nardini guide § 87(2)(b) to a police vehicle parked in the street. § 87(2)(b) appears to plant his feet and resist walking in the direction the officers are guiding him. Between 05:15 and 08:32 in PO Bautista's BWC (BR 06), PO Bautista and PO Ducasse push § 87(2)(b) motorcycle to the 30th Precinct stationhouse.

At no point in any of the BWC footage does Sgt. Amoresano push § 87(2)(b) (BR 02-12).

Summons #§ 87(2)(b) (BR 13), issued to § 87(2)(b) by PO Ducasse for having an unattended running vehicle, states the following: "At [time and place of occurrence] I was inform [sic] by Sgt. Amoresano he did observe the above vehicle idling for approx. more than 3 mins." This was the sole summons provided to the investigation by the NYPD (BR 31).

Sgt. Amoresano stated (BR 15) he called § 87(2)(b) "little bro," because § 87(2)(b) is known by that nickname in the community. He was not personally familiar with § 87(2)(b). He did not push § 87(2)(b) at any point. He ordered officers to write § 87(2)(b) summonses after the incident. He did not recall viewing § 87(2)(b) vehicle idling for three minutes and he did not recall speaking to PO Ducasse about issuing a summons for engine idling.

NYPD Patrol Guide Procedure 200-02 (BR 18) states that officers are to "maintain a higher standard of integrity than is generally expected of others," "respect the dignity of each individual," and "render services with courtesy and civility."

Patrol Guide Procedure 218-19 (BR 20) states officers may seize an unregistered vehicle and/or property in order to determine its true owner.

§ 87(2)(g)
§ 87(2)(b) clearly demonstrates on the BWC footage that he objects to being addressed in this fashion, which suggests that "little bro" is not his nickname. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation A** be closed as **Substantiated**.

NYPD Patrol Guide Procedure 221-01 (**BR 19**) states that officers may use force when it is reasonable to place a person in custody or to prevent escape from custody. Officers' use of force must be reasonable under the circumstances, and de-escalation techniques, which may reduce or eliminate the need for force by gaining the subject's voluntary compliance, must be prioritized. Officers shall "apply no more than the reasonable force necessary to gain control."

BWC corroborates Sgt. Amoresano's testimony that he did not push § 87(2)(b) at any point during the incident. It is therefore recommended that **Allegation B** be closed as **Unfounded**.

BWC shows that at the time Lt. Nardini, PO Saha, and PO Sultana pushed § 87(2)(b) he had been placed under arrest and was being taken into custody. Moreover, footage shows § 87(2)(b) resisted the officers' attempts to guide him toward a police vehicle by planting his feet and refusing to move forward. § 87(2)(g)

It is therefore recommended that **Allegation C, D, and E** be closed as **Within NYPD Guidelines**.

Per New York State Vehicle and Traffic Law Section 402 (**BR 16**), "No person shall operate, drive or park a motor vehicle on the public highways of this state unless such vehicle shall have a distinctive number assigned to it by the commissioner and a set of number plates issued by the commissioner with a number and other identification matter." A public highway is defined as "any highway, road, street, avenue, alley, public place, public driveway or any other public way" (**BR 30**).

BWC shows that § 87(2)(b) motorcycle was missing a license plate while on the sidewalk, § 87(2)(b)

It is therefore recommended that **Allegations F and G** be closed as **Within NYPD Guidelines**.

Per New York City Administrative Guide Section 24-163 (**BR 17**), no person shall cause or permit the engine of a motor vehicle to idle for longer than three minutes.

Per BWC footage, at the time Sgt. Amoresano placed § 87(2)(b) in handcuffs, Sgt. Amoresano had only been out of his vehicle for approximately one minute and 19 seconds. Moreover, Sgt. Amoresano stated the first time he saw § 87(2)(b) vehicle was when he arrived on scene, not at an earlier time. § 87(2)(g)

It is therefore recommended that **Allegation H** be closed as **Substantiated**.

Allegation (I) Abuse of Authority: On April 14, 2023, at § 87(2)(b) in Manhattan, an officer seized § 87(2)(b) property.

§ 87(2)(b) stated (BR 14) that on April 14, 2023, the superintendent of his building (name unknown) told him that police officers took five stacked safety cones that were on sidewalk next his parked car in front of § 87(2)(b). The superintendent told him that the officers were in a vehicle. § 87(2)(b) did not see the officers. His superintendent did not provide him with a description of the officers.

No property vouchers for § 87(2)(b) traffic cones were prepared on April 14, 2023 (BR 24).

An AVL request (BR 20) for police vehicles that drove in the vicinity of § 87(2)(b) around the time of the incident yielded RMP #4932-19, assigned to Lieutenant Jamie Nardini and Police Officer Tyler Goldberg.

AVL results for RMP #4932-19 show (BR 21) that the vehicle drove past § 87(2)(b) at approximately 3:41 P.M., but it did not come to a stop in the vicinity of the incident location. The results state the vehicle is assigned to the 30th Precinct.

§ 87(2)(b)

New York City Administrative Guide Section 19-136 (a): It shall be unlawful for any person to hang or place any goods, wares or merchandise, or suffer, maintain or permit the same to be hung or placed, at a greater distance than three feet in front of his or her house, store or other building (BR 23).

Though AVL results show RMP #4932-19 driving past § 87(2)(b) address, it did not come to a complete stop. § 87(2)(b)

§ 87(2)(g)

It is therefore recommended that Allegation I be closed as Within NYPD Guidelines.

Allegation (J) Abuse of Authority: On April 20, 2023, at § 87(2)(b) in Manhattan, Police Officer Glendy Garzonjimenez seized § 87(2)(b) property.

§ 87(2)(b) stated (BR 14) that he returned home at 1:00 P.M. on April 20, 2023, he noticed the traffic cones he had placed around his motorcycle, which was parked in the street, were missing. His superintendent told him that three officers in a marked SUV had taken the cones.

A property voucher from April 20, 2023, states (BR 24) that four orange traffic cones were vouchered as found property by PO Glendy Garzonjimenez at 1:37 P.M.

According to NYC DOT Traffic Rules Section 4-08(n)(7): It shall be unlawful for any person to reserve or attempt to reserve a parking space, or prevent any vehicle from parking on a public street through his/her presence in the roadway, the use of hand-signals, or by placing any box, can, crate,

handcart, dolly or any other device, including unauthorized pavement, curb or street markings or signs in the roadway (BR 25).

§ 87(2)(g)

It is therefore recommended that **Allegation J** be closed as **Within NYPD Guidelines**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (BR 26).
- Sgt. Amoresano has been a member of service for 23 and has been a subject in 10 other CCRB complaints and 27 allegations, of which six were substantiated:
 - 200511864 involved substantiated allegations of a frisk and a search. The Board's disciplinary recommendation is unavailable. The NYPD did not impose any discipline.
 - 202105030 involved substantiated allegations of an entry and a search. The Board recommended Command Discipline B and the NYPD did not impose any discipline.
 - 202200277 involved substantiated allegations of a search and a threat of arrest. The Board recommended charges. The NYPD has yet to impose discipline.
 - § 87(2)(g)
- PO Bautista has been a member of service for 10 years and has been a subject in 12 other CCRB complaints and 41 allegations, of which 13 were substantiated.
 - 201506161 involved substantiated allegations of a chokehold and force – other. The Board's disciplinary recommendation is unavailable. He was found not guilty in an APU trial.
 - 201701649 involved substantiated allegations of a frisk, a search, and a stop. The NYPD imposed formalized training.
 - 201809463 involved a substantiated allegation of a discourteous word. The Board's disciplinary recommendation is unavailable. The NYPD imposed Command Discipline A.
 - 201901679 involved substantiated allegations of physical force, verbal sexual harassment, discourteous action, discourteous gesture, discourteous word, offensive language in regard to ethnicity, gender, and race. The Board's disciplinary recommendation is unavailable. The NYPD imposed a discipline of 11 forfeited vacation days.
- PO Ducasse has been a member of service for two years and has been a subject in one other CCRB complaint and three allegations, none of which were substantiated. § 87(2)(g)
- PO Garzonjimenez has been a member of service for two years and has been a subject in one other CCRB complaint and one allegation, which was not substantiated. § 87(2)(g)
- Lt. Nardini has been a member of service for 17 years and this is the first CCRB complaint to which she has been a subject.
- PO Saha has been a member of service for three years and has been a subject in one other CCRB complaint and six allegations, which are still under investigation.
- PO Sultana has been a member of service for two years and this is the first CCRB complaint to which she has been a subject.

Mediation, Civil, and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.

- As of November 21, 2023, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regard to this complaint (**BR 29**).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

[REDACTED]

[REDACTED]

[REDACTED]

[REDACTED]

RPBP History

- This complaint did not contain any allegations of Racial Profiling/Bias-Based Policing.

Squad No.: 13

Investigator:	<u>Coleson Smith</u>	<u>Inv. Coleson Smith</u>	<u>12/8/2023</u>
	Signature	Print Title & Name	Date

Squad Leader:	<u>JP Lozada</u>	<u>IM Jean-Paul Lozada</u>	<u>12/08/2023</u>
	Signature	Print Title & Name	Date

Reviewer:	<u></u>	<u></u>	<u></u>
	Signature	Print Title & Name	Date